1798), the contemplated marriage took place; whereupon, the trustees put Turner into possession of the land and slaves, and he continued possessed of the same, with the knowledge and approbation of the trustees, until his death, which happened some time in the month of December 1802, less than five years from the time of his marriage, and of his first coming into possession of the property.

Turner and his wife resided in Alexandria, from the time of their marriage until the autumn of 1801, when they removed into the county of Northumberland, in the state of Virginia, taking the slaves with them, by consent of the trustees; they continued to reside there, upon the land in the deed mentioned, on which the slaves were kept, until his death, in December 1802. Upon his death, she remained in possession both of the land and
*156] slaves, claiming exclusive property in the same, and to *hold possession of the same, with the privity and approbation of the trustees, whose privity and approbation were expressly found. In the autumn of 1803, the defendant removed back to Alexandria, in the district of Columbia, and brought with her a part of the slaves (of value sufficient to satisfy the plaintiff's debt), and had ever since resided in Alexandria, and there used the slaves so brought with her.

Three months after Turner's death, and seven months before the defendant removed from Northumberland back to Alexandria, the county court of Northumberland, finding that no person would apply for administration of the intestate's estate, committed the administration to the sheriff of the county, under a particular statute of Virginia. The sheriff returned an inventory of assets, appraised at $4631.72, which was distributed in due proportions among the creditors, under the special direction of the court. But the plaintiff put in no claim, and not being on the list of creditors reported to the court, received no part of the sum so distributed. None of the slaves conveyed by the said deed were meddled with, in the course of the sheriff's administration, nor included in the inventory and appraisement, although they were all then in the county, and some of them continued in the county ever since Turner's death. It was found that Turner died insolvent, unless the said slaves were charged with his debts.

By the 4th section of the act of assembly of Virginia, entitled "an act for regulating conveyances," it is enacted, "that all conveyances of lands," "and all deeds of settlement upon marriage, wherein either lands, slaves, money or other personal thing shall be settled," "and all deeds of trust and mortgages whatsoever," "shall be void as to all creditors and subsequent purchasers, unless they shall be acknowledged, or proved and recorded, according to the directions of this act; but the same, as between the parties and their heirs, shall nevertheless be valid and binding."

*157] *The deed in question never was proved or acknowledged and recorded according to the directions of the act; and the question was, whether it was void as to the creditors of the husband, so as to charge the widow, as his executrix in her own wrong?

The opinion of the court below was, that the deed was good and effectual to prevent the property vesting in the husband, by virtue of the marriage, and consequently, was never liable for his debts. That at the time of the marriage, no legal estate in the slaves was vested in the wife, and therefore, nothing was transferred to the husband by the marriage.